

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK, N.A. vs. ACACIA TINSLEY
Case No. CL25-02105**

Defendant's Motion to be Relieved as Counsel

TENTATIVE RULING

Attorney Dustin Young's unopposed Motion to Relieved as Counsel for Defendant, Acacia Tinsley is GRANTED, effective upon date of service of the Order.

**EDWARD MCKENNA vs. C/O C. AGUIAR; ET AL.
Case No. CU24-08105**

Demurrer to First Amended Complaint

TENTATIVE RULING

Defendants C. AGUIAR, S. ARNOLD, M. GLAUDE, J. HEATH, J. RATA, J. SWEETEN, A. TARRANT, and M. TROTH demur to Plaintiff EDWARD PHILLIP MCKENNA'S first amended complaint alleging causes of action for assault, battery, and fraud. Summarized, Plaintiff alleges that Defendants, correctional officers at California Medical Facility, beat him on May 28, 2022 and in June 2022 generated fraudulent reports concerning the incident.

The court has not received opposition to the demurrer.

Government Code section 945.6 states that a suit against a public entity on a cause of action for which government claim presentation is required must be commenced within six months of written notice of the claims presentation board's action on the claim or within two years of the accrual of the cause of action if no written notice is given. Government Code section 950.2 provides that an action against a public employee for injury occurring from acts or omissions in the scope of his employment is barred if an action against the employing entity would be barred, meaning that section 945.6's limitations apply to Plaintiff's claims (for injury from acts of public employees) against Defendants (the public employees).

The court takes judicial notice of Defendants' proffered materials, comprising the record of Plaintiff's government claim form submitted July 24, 2022, under Evidence Code section 452, subdivision (c) as records of the state executive. The record of Plaintiff's government claim form shows a facial time bar for Plaintiff's complaint. Plaintiff's statute of limitations for this action, where he did not receive written notice from the claims board regarding his claim, ran on May 28, 2024. However, Plaintiff's original complaint in this action was filed on October 8, 2024.

Defendants' unopposed demurrer is sustained without leave to amend.

ANTONIO CONTRERAS MORA vs. CITY OF FAIRFIELD; ET AL
Case No. CU24-08766
(CONSOLIDATED WITH)
PONCE-NUÑEZ vs. CITY OF FAIRFIELD; ET AL.
Case No. CU24-08768

Demurrer by Defendant STATE OF CALIFORNIA (CALTRANS) to Plaintiffs' Second Amended Complaint

TENTATIVE RULING

Liability against a public entity such as CALTRANS must be based on statute, not common law. Government Code §815(a); Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.

Government Code §830(a) defines "dangerous condition" as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used."

Government Code §835 confirms that a public entity can be held liable for a dangerous condition of public property caused by a negligent act or omission of an employee of that public entity.